

Subject: Town Meeting notes Night 1

From: Stephen Harrington <sth.alist@gmail.com>

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To: Greg Christiana <gchristiana@town.arlington.ma.us>

BCC: LAdams.Precinct1@gmail.com, charleskhartshorne@gmail.com, calen.pennington@gmail.com, jrioux@wesleyan.edu, Greg Dennis <gdennis@alum.mit.edu>, becca.persson@gmail.com, Steve Revilak <steve@srevilak.net>, petery02139@yahoo.com, vince.arlington@gmail.com, samhesni@gmail.com, Chris Porter <cdptrans@gmail.com>, jeffreysullivan@gmail.com, samit.chhabra@gmail.com, ajoclarke@gmail.com, fiorepe@hotmail.com, brendansullivan33@gmail.com, John Paul Lewicke <jplewicke@gmail.com>, maxwellpalmer@gmail.com, rvrossi@gmail.com, rajeevataid@yahoo.com, Peter Gast <petegast4arlington@gmail.com>, aimeeingrid@gmail.com, "William J. Logan, Esq." <wlogan@rcn.com>, jennifer_roderick@hotmail.com, Jennifer Litowski <jennifer.litowski@gmail.com>, rparlintermm3@gmail.com, remymacaluso@gmail.com, stacienicole2224@gmail.com, "Jennifer R. Susse" <jennifer.susse@gmail.com>, Lenard Diggins <ldiggins@gmail.com>, mail@ajblane.com, amoswmeeks@gmail.com, nmewada@gmail.com, ebenmill@gmail.com, mixmastermully@gmail.com, Susan Stamps <susan.stamps@comcast.net>, angelique.bradford@gmail.com, allisongriggs@protonmail.com, cyndi.grossman@gmail.com, alhams999@gmail.com, Ezra Fischer <ezrafischer@gmail.com>, James Fleming <jflemingwpi13@gmail.com>, JGarberTMM4@gmail.com, epz@ethanzimmer.net, John.Kloss@gmail.com, doripelegmazor@gmail.com, michelephelantownmeeting@gmail.com, Arthur Prokosch <app@pobox.com>, jbarr720s@gmail.com, clf_scw@hotmail.com, patrick.m.hanlon@gmail.com, Jo Anne Preston <ja-preston@comcast.net>, adam4arl@gmail.com, c_bunnell@yahoo.com, benrudick@gmail.com, jobar@alum.mit.edu, andy.greenspon.tmm@gmail.com, Phedjina Jean <phedjinajean4@gmail.com>, brian@brianmcmurray.com, Jim Ballin <jballintmm6@gmail.com>, edwardmblundell@gmail.com, Austin B <austin.brown124@gmail.com>, danielmt@jalkut.com, tm@charlesblandy.com, Pi.L.D.Fisher@gmail.com, anna@henkin.me, Lesley Waxman <lwaxman@gmail.com>, Andrew Fischer <andrew.fischer25@gmail.com>, "ahollman@aol.com" <ahollman@aol.com>, philsimonarlma@gmail.com, jlsolomon@gmail.com, artfulgram@gmail.com, ljslotnick@gmail.com, betty stone <bjstone13@yahoo.com>, Rebecca Younkin <rebeccayounkin@gmail.com>, Jane Biondi <jane.biondi.tmm@gmail.com>, rholland1951@gmail.com, mlefevre96@gmail.com, rvarlingtonma@gmail.com, Aamodtmail@gmail.com, suebdonnely@gmail.com, philipgoff94pg@gmail.com, Chris Loreti <cloreti@verizon.net>, "Carol L. Band" <carol@carolband.com>, D Bean <beandk50@yahoo.com>, Joshua Lobel <josh.lobel@gmail.com>, laura.wiener73@gmail.com, meaarlington@gmail.com, Sharon Grossman <sharongrossman1@gmail.com>, caitlinemonaghan@gmail.com, janice.pagliasotti@gmail.com, StephanieFordWeemsTMM8@gmail.com, snwshark@hotmail.com, Elizabeth Pyle <elizabeth.m.pyle@gmail.com>, John Worden <jworden@swwalaw.com>, Mona Mandal <mona.arlingtontm9@gmail.com>, Beth

Melofchick <tankmadel@yahoo.com>, Paul Schlichtman <paul@schlichtman.org>, rieko@riekotanaka.com, alex.bagnall.tmm@gmail.com, Betsy Carlton-Gysan <betsycarltongysan@gmail.com>, Jennifer Mansfield <jlsmason@gmail.com>, "A. Michael Ruderman" <amruderman@gmail.com>, liz.ferola.tmm@gmail.com, Linda Hanson <lhanson@rcn.com>, Mark Kaepplein <markk02474@gmail.com>, paul@sparkstreetdigital.com, Elizabeth Dray <elizabethdray7@gmail.com>, bmelliott@gmail.com, Rebecca Gruber <rebeccagruber215@gmail.com>, sanjay.newton@arlingtontmm.org, eugene.b.benson@gmail.com, sberryprecinct10arlington@gmail.com, davidbrecht02476@gmail.com, Charlie Foskett <charlie.foskett@foskettco.com>, Christian Mac Quarrie <cmqklein@gmail.com>, Michael Quinn <michael.quinn@gmail.com>, mvaroglu+TMM10@gmail.com, jcutraro@gmail.com, ianfor11@iangoodsell.com, junkonagano5@gmail.com, bobrj.rad@gmail.com, chuckcarney11@gmail.com, valerie.t.geary@gmail.com, "Edward M." <emirac@pm.me>, yamansirin@gmail.com, Ms Kristin Lee Anderson <forcedexposure@gmail.com>, Lynette Culverhouse <lculverhouse@gmail.com>, wilddeliver@aol.com, matthewdeanmiller@gmail.com, ldieringer@gmail.com, james_ditullio@hotmail.com, epigen@fuse.net, sam.polk@outlook.com, ebonline51@outlook.com, Robin L Bergman <robinforp12@gmail.com>, lab@allin.org, "Jeffrey D. Thielman" <jeff.thielman@gmail.com>, Juli Brazile <juli@brazile.net>, ehelmuth@town.arlington.ma.us, carolineprecinct12@yahoo.com, svakil@gmail.com, bdatkins@gmail.com, Paul Bayer <pjbayer@alum.mit.edu>, cchalapatias@gmail.com, Joe Kerble <brotherslawn@hotmail.com>, kirsi.allison-ampe@arlingtontmm.org, zgrunko@yahoo.com, Annie LaCourt <annie@lacourt.net>, Marina Popova <marinap4arl@gmail.com>, librarianMara@gmail.com, orfanosmichelle@gmail.com, Lee Poage <leepoage@gmail.com>, psankalia@hotmail.com, "Amy R. Goldstein" <amyrgoldstein29@gmail.com>, gutierrezmartinezp@gmail.com, Alan Jones <jones@carr-jones.com>, tmm14.cmoore@gmail.com, Elisabeth Carr-Jones <elisabeth@carr-jones.com>, Wynelle Evans <evco7@rcn.com>, Paul Schimek <paul.schimek@gmail.com>, massinvestor@gmail.com, Guillermo Hamlin <gshamlin89@gmail.com>, "Diane M. Mahon" <dianemahon@verizon.net>, "Brendan F. O'Day" <brendan.oday@gmail.com>, MBR <mbr@arlsoft.com>, christinecarneypt15@gmail.com, lincun13@hotmail.com, kirby.cho@gmail.com, faton.limani@gmail.com, Mary Ellen Bilafer <mebilafer@gmail.com>, Michele Desmond <micheledesmond@msn.com>, Beth Ann Friedman <bethann-friedman@comcast.net>, cheigham@comcast.net, Jo Babiarz <jobabiarz@gmail.com>, "Frank J. Ciano" <frankieboy@aol.com>, fitzgeraldavp15@gmail.com, cawagnertmm15@outlook.com, laurenvboyle@gmail.com, M Lewiton <mlewiton@yahoo.com>, Audrey Robert -Ramírez <audreymrobert@gmail.com>, solomj@gmail.com, Adam Auster <adam.auster.arlington@gmail.com>, Grant Cook <grant_cook@verizon.net>, Brooks Harrelson <brooks@harrelson.net>, Rebecca Peterson <rebeccapetersontmm@gmail.com>, andybrody@hotmail.com, Kevin Koch <kevinpkoch@gmail.com>, JamesMcSArlington@gmail.com, Michael Jacoby Brown <mjbrown246@gmail.com>, amolszewski@gmail.com, abtosti@outlook.com, amymantczak@gmail.com, Josh Arnold <josharnold52@gmail.com>, Ann LeRoyer <annleroyer12@gmail.com>, Amy Slutzky <amy.l.slutzky@gmail.com>, hila.bernstein@gmail.com, Xavid <xavid@xavid.us>, richterg@aol.com, Donnarose Russian

<donnaroserussian@yahoo.com>, Brian Canniff <bcanniff@comcast.net>, john@johnhurdclaw.com, amyiliefala@gmail.com, Dave Levy <david.jeffrey.levy@gmail.com>, jamiejacee@gmail.com, Jon Gersh <jon@planetbanjo.com>, barry+tmm18@jaspan.org, Charles Wescott <cwescott@alum.mit.edu>, Jacob or Nancy Bloom <jandnbloom@gmail.com>, smtmm18@gmail.com, "Carolyn M. Parsons" <carolynmparsons@msn.com>, Brian White <brian.white@umb.edu>, precinct19fcm@gmail.com, mattowentmm@gmail.com, precinct19june@gmail.com, susanryanvollmar@gmail.com, "christinepdeshler@hotmail.com" <christinepdeshler@hotmail.com>, mariad4arl@gmail.com, "Michelle M. Durocher" <michellemdurocher@hotmail.com>, j_cgrieff@verizon.net, Melanie Brown <melb.tmm419@gmail.com>, elaine-tmm19@communication-exchange.com, jwh54@rcn.com, edwardtremblyprecinct19@gmail.com, schiarito@verizon.net, Jmah <jmah@pobox.com>, njmann1958@gmail.com, shenysophie@gmail.com, Dean Carman <dean.carman@verizon.net>, Sarah McKinnon <smckinnonarl@gmail.com>, "Robert L. Tosi" <bobtosi@verizon.net>, vossmer@gmail.com, janecaufield.arl@gmail.com, "Maureen E. Gormley" <megdc@aol.com>, Martin Heermance <mheermance@gmail.com>, kpennarunarlingtonma@gmail.com, tonya.bourassa21@gmail.com, "Susan R. Doctrow" <sdoctrowarltn@gmail.com>, Jason Martin <jwmartin@gmail.com>, whitede@gmail.com, jcullinane.tmm@gmail.com, annee319@gmail.com, Carmine Granucci <carmine.granucci@gmail.com>, Lori Leahy <loribleahy@gmail.com>, Beth Benedikt <bethb94121@gmail.com>, jill.krajewski.arlington@gmail.com, Chris Rowell <chrisrowell5@hotmail.com>, Jordan Weinstein <jordan3weinstein@gmail.com>, Richard Pelletier <rpelleti2973@gmail.com>, g_carme@yahoo.com

Deat Arlington Town Meeting Members,

Apologies for the late update to those who look forward to my resident's recap of Town Meeting, I know how many of you want an independent view. I also know how many of you block the same. Below is my take on Town Meeting's first session.

Night 1 - Oaths

The meeting started with 30 minutes of pomp, circumstance and the "Civility Oath" that all Town Meeting members are not **required** to utter, but Town Meeting Moderator Greg Christiana ominously stated that he would hold even the "Civility Oath" deniers to the same standard, quoted below.

Raise your right hand, repeat after me using your own name, I _____, will participate fully and will fairly evaluate all matters before Town Meeting; and vote in the best interests of the Town. I support free speech and will treat others with mutual respect and will conduct myself in a civil manner that is becoming of an elected Town Meeting Member. I do solemnly swear that I will faithfully and impartially perform the duties incumbent upon me as a Town Meeting Member of the Town of Arlington in accordance with the by-laws, the Town Manager Act and the General Laws of the Commonwealth.

I support free speech and will treat others with mutual respect and will conduct myself in a civil manner

Of course, "Civility Oaths" are unconstitutional in Massachusetts as a recent 2023 SJC ruling unequivocally ruled. An unbiased reasoned take is attached clearly indicating, this oath is likely unconstitutional. As an aside, Arlington School Committee goes even further and demands petitioners avoid critiques of employees. The Board of Selectmen has a history of using the police to silence critics of town officials. Also, note no reference to the US Constitution.

Free Speech Arlington style!

Arlington Town Town Meeting Moderator Greg Christiana, larping as a constitutional authority, stated that "Civility Oaths" are an "*open legal question*" and that speakers who opted out would be "*held to the spirit and values of*" the Civility Oath. We won't unmask who recently told Christiana that he refused to take the oath, which no doubt prompted Christiana's petty insistence on abiding by such an illegal Oath; it is a pattern of behavior.

A few minutes later, for the very first vote, Town Meeting was asked to approve the "satellite" room, where infected and fearful members can attend Town Meeting in the annex of Town Hall. Five years after Covid.

Interestingly, the vote was first 151 for the room and 1 (one) person against the room. Instead of taking a voice vote, as was done for the first few warrant articles, Christiana held an electronic vote and displayed the names. When the lone dissenting name was unmasked, a former Republican Town Committee chair, the entire Town Meeting, a sea of Democrats, burst out laughing derisively without comment by Christiana.

How very **civil!**, and a wonderful example of **mutual respect**.

Bullies

Laughing derisively at people you disagree with is a form of bullying; doing it with a large group of people is called mobbing. The intent is to silence the target through intimidation. Taking an oath to be civil and grant each other mutual respect AND your very next act is to do the opposite is hypocrisy. Bullying, mobbing and intimidation of minority political speech, a vote, is disgusting.

This was not the only laughter directed at other members. Ed Trembley, who actually knows more about electricity in practice than the rest of you, was for the second year in a row, made the butt of Christiana's mocking when he asked about how Arlington plans to deliver the new energy the goals of electrification requires, aka a substation.

You all found that funny too. The first night was full of mirth as you clapped at your own

votes and laughed at a couple other dissenting voices; like school yard bullies.

And some of you find it offensive when I opine about Town politics and officials, lol.

Other Acts

A new revolving fund that tried to bypass the minimal Town Meeting scrutiny was postponed once a few members realized this slush fund took money away from the schools. Oops, touched the third rail of Arlington politics. Christiana mumbled something about the main motion being out of scope, as though he never read it before, while the town officials scrambled. That was also a theme of the first night, the meeting is somewhat chaotic and not well run.

Stay tuned for a recap of Night 2!

Stephen Harrington

— Civility Oaths.jpg —



Are civility oaths for town meeting in MA legal?

Answer

Civility oaths for town meetings in Massachusetts are likely unconstitutional based on a key ruling by the Massachusetts Supreme Judicial Court (SJC). In *Barron v. Kolenda* (2023), the SJC struck down a Southborough Select Board policy requiring public comments to be "respectful and courteous, free of rude, personal, or slanderous remarks." The court held that such "civility restraints" violate Articles 16 (free speech) and 19 (right to assembly) of the Massachusetts Declaration of Rights. The ruling emphasized that even rude or disrespectful speech about government officials is protected, as the state's assembly clause envisions an "aggrieved and angry populace" engaging in robust debate. The court found the policy overly broad and vague, noting that "peaceable and orderly" does not mean "respectful and courteous."

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While *Barron* specifically addressed a public comment policy during a Select Board meeting, its logic extends to town meetings, which are legislative bodies governed by similar principles of open deliberation.

Massachusetts town meetings operate under state (e.g., M.G.L. c. 39) and local bylaws, which allow



— Attachments:

Civility Oaths.jpg

366 KB